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Case Number: 25SMCV06819 Hearing Date: June 30, 2026 Dept: M

CASE NAME: Experior Financial Group, Inc., v. Primerica
Financial Services, LLC, et al.

CASE NO.: 25SMCV06819

MOTION: Motion to

Dismiss Forum non Conveniens; and

Motion to Compel Arbitration

HEARING DATE: 6/30/2026

Legal

Standard

Forum Non Conveniens

“Forum non conveniens is an equitable doctrine invoking the discretionary power of a court to decline to exercise the jurisdiction it has over a transitory cause of action when it believes that the action may be more appropriately and justly tried elsewhere. [Citations].” (Stangvik v. Shiley, Inc. (1991) 54 Cal.3d 744, 751.) The doctrine has been codified in Code of Civil Procedure section 410.30. “The inquiry is whether ‘in the interest of substantial justice an action should be heard in a forum outside this state.’ ” (Animal Film, LLC v. D.E.J. Productions, Inc. (2011) 193 Cal.App.4th 466, 471.)

Where plaintiff is a California

resident for purposes of forum non conveniens, there is a strong presumption in favor of plaintiff's choice of forum. (Stangvik, supra, 54 Cal.3d at 754.) A nonresident plaintiff's choice of forum is entitled to "due deference" under all circumstances, but not a strong presumption of appropriateness. (National Football League v. Fireman's Fund Ins. Co. (2013) 216 Cal.App.4th 902, 929-930.)

In a contract dispute where the contract contains a forum selection clause "a threshold question in a forum non conveniens motion is whether a forum selection clause is mandatory or permissive." (Animal Film, Inc., supra, 193 Cal.App.4th at 471.) Because California favors enforcement of mandatory forum selection clauses, they will be given effect absent a showing by the party resisting the motion that enforcement of such clauses would be unreasonable. (Quanta Computer Inc. v. Japan Communications Inc. (2018) 21 Cal.App.5th 438, 445.) "The factors that apply generally to a forum non conveniens motion do not control in a case involving a mandatory forum selection clause. Where there is a mandatory forum selection clause, 'the test is simply whether application of the clause is unfair or unreasonable, and the clause is usually given effect. Claims that the previously chosen forum is unfair or inconvenient are generally rejected. A court will usually honor a mandatory forum selection clause without extensive analysis of factors relating to convenience.'" (Ibid. [citations and internal quotation marks omitted].)

Compel Arbitration

Under California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 8-9; AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.) Accordingly, whether an agreement is governed by the California Arbitration Act ("CAA") or the Federal Arbitration Act ("FAA"), courts resolve doubts about an arbitration agreement's scope in favor of arbitration. (Moncharsh, supra, 3 Cal.4th at 9; Comedy Club, Inc. v. Improv West Assocs. (9th Cir. 2009) 553 F.3d 1277, 1284; see also Engalla v. Permanente Med. Grp., Inc. (1997) 15 Cal.4th 951, 971-972 ["California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability [citation] and a requirement that an arbitration agreement must be enforced on the basis of state law standards that apply to contracts in general"].) "[U]nder both the FAA and California law,

'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.' " (Higgins v. Superior Crout (2006) 140 Cal.App.4th 1238, 1247.)

"Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration if the court determines that an agreement to arbitrate the controversy exists." (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59, quotations omitted.) Accordingly, "when presented with a petition to compel arbitration, the court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute." (Ibid.) A petition to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (Id. at 71.) As with any other specific performance claim, "a party seeking to enforce an arbitration agreement must show the agreement's terms are sufficiently definite to enable the court to know what it is to enforce." (Ibid. [internal citations omitted].) "Only the valid and binding agreement of the parties, including all material terms well-defined and clearly expressed, may be ordered specifically performed." (Ibid.) An arbitration agreement "must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (Civ. Code, § 1636.) The language of the contract governs its interpretation if it is clear and explicit. (Civ. Code, § 1368.) If uncertainty exists, "the language of a contract should be interpreted most strongly against the party who caused the uncertainty to exist." (Civ. Code, § 1654.)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.) It would then be plaintiff's burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to her opposition. (See Ibid.) "In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Ibid.) As with any contract, mutual assent or consent is necessary for the formation of a valid arbitration agreement. (Civ. Code, §§ 1550, 1565.) "Consent is not mutual, unless the parties all agree upon the same thing in the same sense." (Civ. Code, § 1580.)

Pro Hac Vice

California Rules of Court ("CRC"), rule 9.40 provides that an attorney in good standing in another jurisdiction may apply to appear pro hac vice in this State by way of written application upon due notice to all interested parties, as well as service on the State Bar in San Francisco with payment of a reasonable fee, so long as that attorney is not a resident of California, does not work in California and does not perform regular or substantial business, professional or other activities in the State.

The written application must provide the following information: (1) applicant attorney's residence and office addresses; (2) the courts to which the applicant attorney has been admitted and dates of admission; (3) a representation that the attorney applicant is a member in good standing in the courts of admission and is not currently suspended or disbarred in any court; (4) the title of each court and action in which the applicant attorney has appeared pro hac vice in this State in the preceding two years, if any; and (5) the name, address, and telephone number of the active California State Bar member who is counsel of record in the local action. (CRC Rule 9.40(d).)

ANALYSIS

Defendants Primerica Financial Services, LLC, Primerica Life Insurance Company, PFS Investments Inc., and Primerica Client Services, Inc. ("Primerica" or "Defendants") moves for an order dismissing Plaintiff Experior Financial Group Inc.'s complaint because California is an inconvenient forum and the action may only proceed in the state of Georgia. (CCP §§ 410.30, 418.10.) Alternatively, Defendants move to compel Plaintiff's claims to arbitration.

Defendants also move for permission for its counsel Meredith N. Palmer and Christopher B. Trowbridge, to appear as counsel pro hac vice on their behalf.

Related Case

Defendants note that, prior to filing the instant action, Plaintiff had filed another, virtually identical action with one of Primerica's former agents subject to these agreements, Pedro

Gonzalez. (Gonzalez v. Primerica Financial Services, LLC, Case No. 25STCV29196.) The Gonzalez action was in Dept. 507 at Stanley Mosk Courthouse. Plaintiff dismissed the Gonzalez action in response to Defendants filing a similar motion in that action, the same day that Plaintiff filed this action. Facially, the two actions appear related within the meaning of CRC 3.300(a)(1)-(2), as they each involve the Plaintiff and Defendants, arise from identical events, seek identical relief, and would resolve substantially identical questions of law and fact. Thus, this action would likely be transferred to Dept. 507. No party has filed a notice of related case, despite an affirmative duty to do so. (CRC Rule 3.300(b), (h).)

Plaintiff is ordered to promptly file a notice of related case in both actions and request Dept. 507 rule on the notice of related case. The Court will continue this motion to allow a ruling on whether these cases are related by Dept. 507, as that department has the earlier numbered case. If Dept. 507 deems the cases related, then that department should rule on the instant, potentially dispositive, motion.

Accordingly, the Court will continue Defendants' motions to _____, which will allow sufficient time for the other department to rule on the notice of related case.

Pro Hac Vice

The applications meet the requirements of CRC Rule 9.40. Defendants' motions for counsel to appear pro hac vice are GRANTED.